

25STCV28426 25STCV28426

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C08%2F10%2F2026

Source SHA-256: 30c2c2424136a03b4786609b8012094b3269b52bee2c1063ce4c2d2faceadd29

Case Number: 25STCV28426 Hearing Date: August 10, 2026 Dept: 512

Case No.

25STCV28426

Case Name:

Charcoal Cumulus

Partners LLC v. Red Tech Service LLC, et al.

Hearing Date:

August 10, 2026

Defaulting defendant(s)

Red Tech service llc and jorge flores jr.

TENTATIVE RULING:

On September 29, 2025,

Plaintiff Charcoal Cumulus Partners LLC ("Plaintiff") filed the instant action against Defendants Red Tech Service LLC ("Red Tech") and Jorge Flores, Jr. ("Flores"), alleging causes of action for Breach of Contract against Red Tech; Intentional Misrepresentation against all Defendants; Violation of Unfair Competition Law against all Defendants; and Violation of Business and Professions Code section 17200 against all Defendants.

On November 13, 2025,

default was entered against Red Tech.

On January 28, 2026, default
was entered against Flores.

Plaintiff seeks judgment against Defendants in the
amount of \$1,866,908.82, consisting of \$1,700,000 in damages, \$147,178.07 in
interest, \$840.75 in costs, and \$18,890.00 in attorney fees.

Plaintiff has submitted some of the requisite
documentation and provided some sufficient evidence to support the judgment
sought. However, the Court notes the following deficiencies exist in the
Default Judgment Packet:

- No Doe Dismissal filed.
- Interest Calculation is incorrect.
- The Complaint and Default Judgment Packet show
liability of breach of contract as to Red Tech, but not sufficiently as to any
cause of action as to Flores, Jr.
- The Default Judgment Packet does not substantiate the
amount of damages sought. Declaration of Josian Citrin is conclusory as to the
damages being requested. (See Decl. Citrin, ¶ 6.)

Based on the foregoing, the Default Judgment Packet is
REJECTED.

Plaintiff is ordered to RESUBMIT the Default Judgment
Packet addressing the deficiencies listed.

On the Court's own motion, the Order to Show Cause Re:
Default Judgment under CCP 585 is continued to October 12, 2026, at 9:00 a.m. in
Department 512 of the Stanley Mosk Courthouse.